

1.

CASE #	CASE NAME	HEARING NAME
CVME2503440	ELSMORE VS MOLDO	MOTION FOR RECONSIDERATION OF ORDER DENYING MOTION TO VACATE/SET ASIDE DEFAULT JUDGMENT

Tentative Ruling: Hearing Required.

2.

CASE #	CASE NAME	HEARING NAME
CVME2505414	BARRETT DAFFIN FRAPPIER TREDER & WEISS, LLP VS MCFARLAND	MOTION FOR STATUTORY DISCHARGE; PAYMENT OF ATTORNEYS FEES AND DEPOSIT OF FUNDS IN COURT

Tentative Ruling: Motion is granted. Attorney's fees awarded to plaintiff in the amount of \$4,092.00 and costs of \$983.43. Balance of \$132,852.29 to be deposited into the Court Trust Account. Plaintiff is discharged.

3.

CASE #	CASE NAME	HEARING NAME
CVME2510668	28441 RANCHO CALIFORNIA, LLC VS HOLLYWOOD SOLES, LLC	DEMURRER AND MOTION TO STRIKE ON 2 ND AMENDED CROSS-COMPLAINT BY 28441 RANCHO CALIFORNIA, LLC

Tentative Ruling: Demurrer for uncertainty is overruled. General Demurrer sustained on XC Causes of Action 1-5 Sustained without leave to amend. Motion to Strike is Moot.

This action arises out of the alleged breach of a lease between the parties (the "Lease") for the commercial premises located at 28441 Rancho California Road, Suite X, Temecula, California (the "Property"). On September 9, 2025, Plaintiff 28441 Rancho California, LLC ("Plaintiff") filed a Complaint against Defendants Julian Moore ("Moore") and Hollywood Soles, LLC ("Defendants") for breach of lease and breach of lease guaranty. On November 17, 2025, Defendants filed an Answer to the Complaint and a Cross-Complaint against Plaintiff for: (1) breach of contract; (2) breach of the implied covenant of quiet enjoyment; (3) constructive eviction; (4) intentional interference with prospective economic advantage/business relations; and (5) negligent interference with prospective economic advantage/business relations. On January 20, 2026, Defendants filed a First Amended Cross-Complaint ("FACC") against Plaintiff asserting the same causes of action. On April 21, 2026, the Court sustained Plaintiff's demurrer to each cause of action asserted in the FACC with leave to amend. On May 11, 2026, Defendants filed a Second Amended Cross-Complaint ("SACC") asserting the same causes of action.

In the SACC, Defendants allege that on February 12, 2024, Hollywood Soles leased the Property from original lessor, The Elwell Building, Inc. ("Elwell") for the term of one-year, from March 1, 2024, to February 28, 2025. (SACC at ¶¶ 3-4, 11-12, Ex. C.) The Lease was for a 3,544 square foot suite inside a 22,394 square foot mixed use industrial/office building. (SACC at ¶ 12, Ex. D.) Hollywood Soles took possession of the Property, paid